

24STCV10316 24STCV10316

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24STCV10316 Erika Silva, et al. v. Vista Bastian Estates,
LP, et al.

Tuesday,
September 8, 2026

TENTATIVE ORDER CONTINUING MINORS COMPROMISE PETITIONS

I. BACKGROUND

Plaintiffs,
residents of an apartment building located at 1823 12th St., Los
Angeles, and owned and/or managed by Defendant Vista Bastian Estates, LP,
allege substandard habitability conditions.

II. ARGUMENTS

Erika
Silva, guardian ad litem for minor plaintiffs David Roy Alfaro Silva (16) and
Rylee Genesee Alfaro Silva (6), presents separate petitions for approval of the
minors' compromises. The petitions arise from a global \$120,000 settlement
involving four adult plaintiffs and the two minors.

III. LEGAL STANDARDS

Court
approval is required for all settlements of a minor's claim. (Prob. Code §§

3500, 3600, et seq.; Code of Civ. Proc., § 372.) “ ‘[W]ithout trial court approval of the proposed compromise of the ward’s claim, the settlement cannot be valid. [Citation.] [¶] Nor is the settlement binding [on the minor] until it is endorsed by the trial court.’ ” (Pearson v. Superior Court (2012) 202 Cal.App.4th 1333, 1338.) A minor, like Claimant, “shall appear either by a guardian or conservator of the estate or by a guardian ad litem appointed by the court in which the action or proceeding is pending, or by a judge thereof, in each case.” (Code Civ. Proc., § 372, subd. (a)(1).)

To obtain court approval of the settlement of a minor’s claims, the petitioner must file a “verified petition for approval of the settlement and must disclose ‘all information that has any bearing upon the reasonableness of the compromise.’ ” (Barnes v. Western Heritage Ins. Co. (2013) 217 Cal.App.4th 249, 256, fn. 4, citing Cal. Rules of Court, rule 7.950.)

IV. DISCUSSION

The petitions cannot be approved on the present record. Although the supporting attachments provide some of the settlement terms, material portions of the mandatory MC-350 forms are incomplete. The attachments reflect a gross allocation of \$10,000 to each minor, proposed attorney fees of \$2,154.85, allocated costs of \$1,380.62, and a net recovery of \$6,464.53 for each minor. The net proceeds are intended to be deposited into blocked accounts. The operative petitions, however, do not properly complete the portions of the form identifying the requested attorney fees, costs, net balance, summary of distributions, and disposition of the minor’s proceeds. The Court should not be required to reconstruct the requested compromise from the attachments.

The petition for Rylee also contains an apparent facial error in the date of birth, which is stated as “03/32/2020.” That must be corrected. In addition, the petition should expressly identify the blocked account disposition and depository information in the portion of the MC-350 provided for that purpose.

The proposed settlement allocation itself is not facially unreasonable. The minors are each allocated \$10,000, while each adult is allocated \$25,000. Counsel explains that the minors assert bodily-injury claims based on insect bites and

allergy-type symptoms treated only with over-the-counter medication, while the adults possess additional claims for property damage, rent reimbursement, out-of-pocket losses, and other lease-related damages. On the present showing, the Court does not identify the gross \$10,000 allocation to each minor as the principal obstacle to approval.

The

principal financial concern is the deduction of \$1,380.62 in costs from each minor's recovery. Counsel states that total litigation costs were \$16,567.40 and the allocation chart assigns those costs among all six plaintiffs. The declaration describes the costs only generally and does not provide an itemization or supporting invoices demonstrating which expenses were incurred for the minors' benefit. Because the adults asserted broader claims and the minors' individual claims were comparatively limited, the Court requires a sufficient explanation for charging each minor a proportional share of the case-wide expenses. The Court cannot determine on the present record that the proposed cost allocation is fair and reasonable to the minors.

Counsel

states that the firm charges a 25 percent contingency fee to minors after reimbursement of costs and estimates at least 20 hours of work attributable to each minor, yielding an effective rate of approximately \$107.74 per hour. The Court does not presently find the amount facially excessive. Nevertheless, because the MC-350 requires the Court to independently review the requested fee under California Rules of Court, rule 7.955, the corrected petitions should clearly state the amount requested and reconcile the fee-and-cost calculation with the written contingency agreement and counsel's declaration.

Accordingly,

the hearing is CONTINUED to December 4, 2026. Before the continued hearing, Plaintiffs shall file corrected and completed MC-350 petitions that accurately state the settlement figures and requested disposition of proceeds, correct the date-of-birth error, and provide an itemized explanation and supporting documentation sufficient to permit the Court to evaluate the \$1,380.62 cost allocation to each minor. Counsel shall also clarify the basis for the requested attorney fees and the manner in which fees and costs are calculated under the written fee agreement. The Court will then determine whether the compromises, including the proposed deductions and blocked-account disposition, are in the best interests of the minors.